

20170210000018640 1 / 5
Bk: 3166 Pg: 66
Hanover Co VA
02/10/2017 08:44:18 AM
DEED EASEMENT

GPIN 7757-69-4003

Exempt from recordation taxes and fees under Sections 58.1-801, 58.1-802, and 17.1-279(A) of the Code of Virginia, 1950, as amended, pursuant to Sections 58.1-811(A)(3) and (C)(5), and 17.1-279(E).

DEED OF EASEMENT

THIS DEED OF EASEMENT is made this 8th day of February, 2017, between GREENLAWN MEMORY GARDEN, INCORPORATED ("Grantor"); and THE COUNTY OF HANOVER, VIRGINIA, (the "County"), P.O. Box 470, Hanover, VA 23069.

WITNESSETH:

WHEREAS the Grantor is the sole owner and proprietor of the property shown on the attached plat (Exhibit "A"), having acquired said property by deed recorded among the land records in the Office of the Clerk of the Circuit Court of Hanover County, Virginia, in Deed Book 703 at page 313; and

WHEREAS the Grantor desires to grant and convey unto Hanover County a permanent water and sanitary sewer easement, as shown on Exhibit "A" and as hereinafter provided.

NOW, THEREFORE, in consideration of the premises and the sum of ONE DOLLAR (\$1.00), receipt of which is hereby acknowledged, the Grantor hereby grants and conveys unto the County, its successors and assigns, a permanent water and sanitary sewer easement as shown on the attached plat entitled "Plat showing a Permanent Variable Width Water and Sanitary Sewer Easement across the Property of Greenlawn Memory Gardens, Inc., GPIN 7757-69-4003, located in the South Anna District, Hanover County, Virginia," dated December 9, 2016 and prepared by Dewberry Consultants, LLC (Exhibit "A"), and known as GPIN 7757-69-4003.

THE EASEMENT shall be for the purpose of constructing, operating, and maintaining water and/or sanitary sewer utilities.

Prepared By & Return To:
Hanover County Department of Public Utilities
P.O. Box 470
Hanover, Virginia 23069-0470

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eFORM1427A
(Deed of Easement - Permanent)
8/13

RETURN TO DPU

Said easement is subject to the following conditions:

1. All material, structures, pipes, manholes, inlet structures, and appurtenant facilities installed in the permanent easement ("facilities") shall remain the property of the County, its successors, and assigns. The County shall have the right at any time and from time to time, to construct, maintain, inspect, operate, protect, replace, repair, change the size of, remove, relocate, and improve all such facilities. The Grantor shall leave all such facilities undisturbed. No charge shall be made at any time for the use or occupancy of this easement by the County, its successors, or assigns.

2. The County and its agents shall have full and free use of the easement for the purposes named, and shall have all rights and privileges reasonably necessary to the utilization of the easement, including but not limited to the right of ingress to and egress from this easement over such private roads as may now or hereafter exist on the property of Grantor. The right, however, is reserved to Grantor to shift, relocate, close or abandon such private roads at any time. If there are no public or private roads reasonably convenient to the easement, the County shall have such right of ingress and egress over the lands of Grantor adjacent to the easement when access is necessary for maintenance purposes; provided, however, that this right of access shall not be deemed to limit the use of the property in any lawful manner. The County shall exercise such rights in such manner as shall occasion the least practicable damage and inconvenience to Grantor.

3. The County shall have the right to trim, cut, and remove any trees, shrubbery, fences, structures, or other obstructions or facilities in the easement being conveyed and deemed by the County to interfere with the proper and efficient use of the easement for the purposes stated.

4. This Deed shall be binding upon the Grantor, its heirs, successors, and assigns.


20170210000018640 2 / 5
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5. Grantor covenants and agrees that all roads, utilities, or subsequent easements granted or constructed across this property will intersect the permanent easement granted herein only if reasonably necessary and then only at right angles or, if this is not reasonably possible, they shall, to the greatest extent possible, be granted or constructed in such a manner as to limit the amount of encroachment onto the permanent easement.

6. Following the exercise of any right granted by this deed, the County shall promptly return the property to its prior condition to the extent reasonably possible consistent with the particular facility or improvement constructed, repaired, replaced, or relocated, except as specified in paragraph 3.

WITNESS the following signatures and seals:

By: Elizabeth P. Gassman (SEAL)

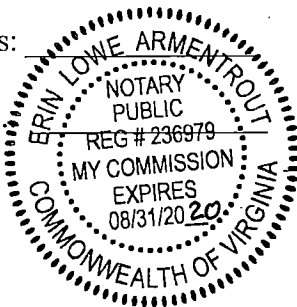
Name (printed): ELIZABETH P. GASSMAN
SECRETARY

COMMONWEALTH OF VIRGINIA,
COUNTY OF Hanover, to-wit:

The foregoing instrument was acknowledged before me February 8, 2017, by Elizabeth P. Gassman, Grantor.

My commission expires:

Notary Registration No.



Erin Lowe Armentrout
Notary Public

Approved as to form:

Approved as to substance:

STANDARD FORM

County Attorney or Designee



Name: Matthew J. Rembold

Title: Engineering Manager

This Deed is accepted by Hanover County, Virginia, pursuant to Va. Code § 15.2-1803. Acceptance by the County is evidenced by the following signature of an authorized official of Hanover County.

Date: 2.08.17

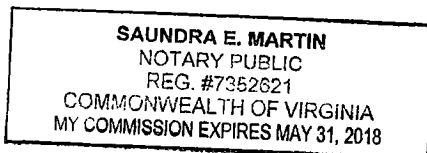

County Administrator/Deputy County Administrator

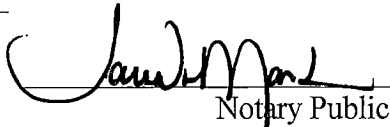
COMMONWEALTH OF VIRGINIA,
COUNTY OF HANOVER, to-wit:

The foregoing instrument was acknowledged before me February 8, 2017, by Frank Starkson County Administrator/Deputy County Administrator, on behalf of Hanover County, Virginia.

My commission expires: 05/31/2018

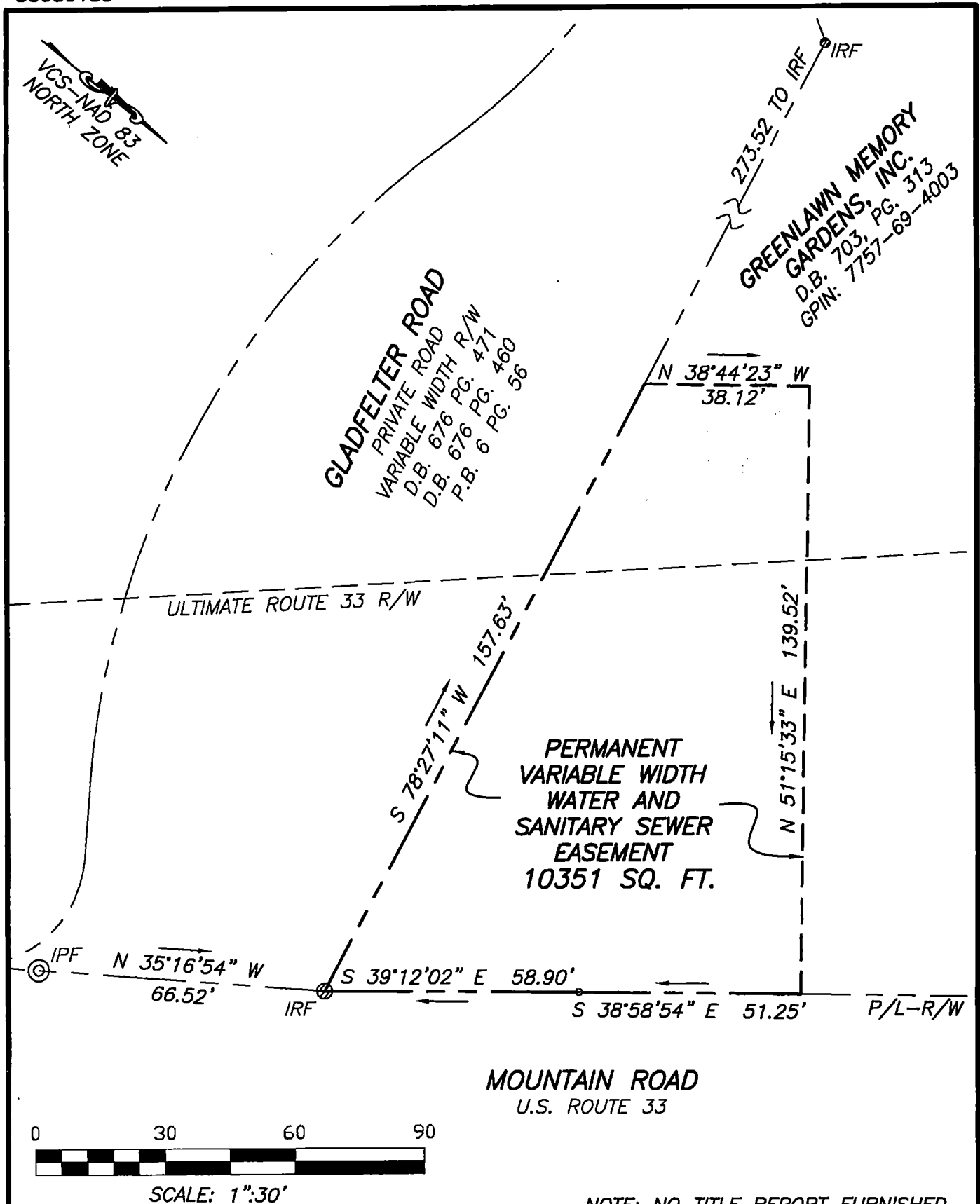
Notary Registration No.: 7352621




Notary Public


20170210000018640 4 / 5
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50080183



NOTE: NO TITLE REPORT FURNISHED

PLAT SHOWING A
PERMANENT VARIABLE WIDTH WATER AND
SANITARY SEWER EASEMENT
ACROSS THE PROPERTY OF
GREENLAWN MEMORY GARDENS, INC.
GPIN 7757-69-4003

SOUTH ANNA DISTRICT ~ HANOVER COUNTY, VIRGINIA
DECEMBER 09, 2016

SHEET 1 OF 1

**Dewberry®**

Dewberry Consultants LLC

4805 Lake brook Drive, Suite 200

Glen Allen, VA 23060

Phone: 804.290.7957

Fax: 804.290.7928

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HANOVER CO CLERK'S OFFICE
02/10/2017 08:44:18 AM
SEC 58.1-802 GRANTOR'S
TAX PD. \$.00
FRANK D. HARGROVE, JR, CLERK
BY: SWEBB



20170210000018640 5 / 5
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